

YIRRA SYSTEMS PTY LTD

COMMERCIAL HARDWARE LICENSE

Replicant GEN 1 — Version 1.0

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1. DEFINITIONS

In this License, the following terms have the meanings set out below:

"Airframe Design Files" means the design files, drawings, CAD models, schematics, and associated documentation for the Replicant GEN 1 airframe and battery rail/mount structure, as made available by Yirra Systems and identified in Schedule A.

"Commercial License Agreement" means the written agreement executed between Licensee and Yirra Systems setting out the applicable fees, scope, and any additional terms.

"Derivative Work" means any design, product, documentation, or file that incorporates, is derived from, or is based upon the Licensed Materials, including modifications, adaptations, translations, or improvements thereof.

"Distribute" means to make available to any third party, whether by sale, supply, gift, transfer, or any other means, whether or not for commercial gain.

"Licensed Materials" means the Airframe Design Files and associated documentation listed in Schedule A, as published and updated from time to time by Yirra Systems.

"Manufactured Product" means any physical item produced using or based upon the Licensed Materials or any Derivative Work thereof.

"Net Selling Price" means the gross invoice price of a Manufactured Product charged to an unrelated third-party customer, less any trade discounts, returns, and freight actually paid.

"Proprietary Components" means the Yirra Systems battery pack design, including cell configuration, wiring harness, electrical design, drawings, and any files explicitly marked "Proprietary" — which are not included in the Licensed Materials and are not licensed under this License.

"Reporting Period" means each consecutive three-month period commencing on the effective date of the Commercial License Agreement.

"Tier" means the applicable pricing tier set out in Schedule B, determined by the Licensee's annual production volume.

2. GRANT OF LICENSE

Subject to the terms of this License and the execution of a Commercial License Agreement, Yirra Systems grants Licensee a non-exclusive, non-sublicensable, worldwide license to:

- (a) download, access, and use the Licensed Materials;
- (b) manufacture Manufactured Products for personal, internal, or commercial purposes;
- (c) create Derivative Works of the Licensed Materials;
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- (e) use the Licensed Materials in proprietary workflows, processes, and products without triggering any share-alike or copyleft obligation.

3. RESTRICTIONS

Licensee must not:

- (a) Sublicense — grant any third party the rights conferred by this License without prior written consent from Yirra Systems;
- (b) Transfer — assign or transfer this License or any rights under it without prior written consent from Yirra Systems;
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- (e) Remove Notices — remove or obscure any copyright, trademark, or attribution notice included in or with the Licensed Materials;
- (f) Circumvent Controls — use this License as a mechanism to circumvent restrictions applicable to the Proprietary Components; or
- (g) Exceed Scope — use the Licensed Materials beyond the scope specified in the applicable Commercial License Agreement.

4. COMMERCIAL FEES, ROYALTIES, AND REPORTING

4.1 Fee Structure.

The commercial fee structure applicable to this License comprises two cumulative components: an Annual Base Fee and a Per-Unit Royalty. Both components apply simultaneously — the Annual Base Fee is not a credit against royalties. The applicable rates for each Tier are set out in Schedule B.

4.2 Tier Classification.

At the commencement of each License year, Licensee must notify Yirra Systems of its projected annual production volume and elect the applicable Tier. If actual production in any License year exceeds the ceiling of the elected Tier, Licensee must:

- (a) notify Yirra Systems within thirty (30) days of the date the ceiling is exceeded;
- (b) upgrade to the applicable higher Tier; and

- (c) pay the difference in Annual Base Fee (pro-rated from the date the threshold was exceeded) and any additional Per-Unit Royalties accrued at the higher rate.

Failure to upgrade in a timely manner is a material breach of this License.

4.3 Annual Base Fee.

The Annual Base Fee for the elected Tier is due and payable in full on the commencement date of the Commercial License Agreement, and on each anniversary of that date thereafter. The Annual Base Fee is non-refundable, including on early termination of this License.

4.4 Per-Unit Royalty.

A Per-Unit Royalty is payable for each Manufactured Product that is Distributed by Licensee or its affiliates during the applicable Reporting Period. The Per-Unit Royalty accrues on the date a Manufactured Product is shipped, invoiced, or otherwise Distributed to a third party, whichever occurs first.

4.5 Royalty Reporting.

Within thirty (30) days of the end of each Reporting Period, Licensee must provide Yirra Systems with a written royalty report containing:

- (a) the total number of Manufactured Products Distributed during the Reporting Period;
- (b) a breakdown by product variant, if applicable;
- (c) the total Per-Unit Royalties accrued; and
- (d) any other information reasonably requested by Yirra Systems.

Royalty reports must be submitted even in periods where no Manufactured Products were Distributed (nil reports).

4.6 Payment Terms.

Per-Unit Royalties are payable within thirty (30) days of the end of each Reporting Period, accompanied by the royalty report required under clause 4.5. All payments must be made in Australian dollars (AUD) by bank transfer to the account nominated by Yirra Systems in the Commercial License Agreement. All fees are exclusive of GST and any other applicable taxes, duties, or withholding obligations, which are the sole responsibility of the Licensee.

4.7 Late Payment.

Amounts not paid by the due date accrue interest at the rate of one and a half percent (1.5%) per month (compounding monthly, equivalent to approximately 19.56% per annum) from the due date until the date of actual payment, without prejudice to any other right or remedy available to Yirra Systems.

4.8 Audit Rights.

Yirra Systems may, no more than once per License year and on not less than thirty (30) days' written notice, appoint an independent auditor to inspect and audit Licensee's books, records, and systems for the purpose of verifying compliance with this License, including the accuracy of royalty reports and payments. If an audit reveals an underpayment of more than five percent (5%) of the amounts due in the audited period, Licensee must pay the underpayment, applicable late payment interest, and the reasonable costs of the audit within thirty (30) days of the audit report.

4.9 No Use Without Agreement.

Licensee may not exercise the rights granted under Section 2 until a Commercial License Agreement is duly executed. Use of the Licensed Materials without a Commercial License Agreement, and without complying with CERN-OHL-W-2.0, constitutes infringement of Yirra Systems' intellectual property rights and may result in legal proceedings.

4.10 How to Engage.

To obtain a Commercial License Agreement, contact Yirra Systems at business@yirrasystems.com. Information about commercial programs, volume arrangements, OEM integration, and battery pack licensing is available through the Yirra Systems commercial programs page.

5. ATTRIBUTION

5.1 Product Attribution.

Licensee must include the following notice in a reasonably prominent location on or with any Manufactured Product or Derivative Work that is Distributed:

Based on Replicant GEN 1 by Yirra Systems. Licensed under the Yirra Systems Commercial Hardware License.

5.2 Documentation Attribution.

Where Licensee publishes technical documentation, promotional material, or user guides relating to a Manufactured Product or Derivative Work, Licensee must include the above attribution in that material.

5.3 Waiver.

Yirra Systems may waive attribution requirements in writing for specific use cases upon request.

6. INTELLECTUAL PROPERTY

6.1 Retained Ownership.

Yirra Systems retains all intellectual property rights in the Licensed Materials and Proprietary Components, including all patents, copyright, trade secrets, design rights, and trademarks. This License does not transfer ownership of any intellectual property to Licensee.

6.2 Derivative Works.

Licensee retains ownership of the original elements of Derivative Works created by Licensee, subject to Yirra Systems' underlying rights in the Licensed Materials. Licensee does not acquire any rights in the Licensed Materials beyond those expressly granted in Section 2.

6.3 Feedback.

If Licensee provides Yirra Systems with suggestions, feedback, or improvements relating to the Licensed Materials ("Feedback"), Licensee grants Yirra Systems a perpetual, irrevocable, royalty-free, worldwide licence to use, reproduce, modify, and incorporate that Feedback into the Licensed Materials or other products, without obligation to Licensee.

7. SAFETY OBLIGATIONS

7.1 Acknowledgement.

Licensee acknowledges that building, modifying, and operating unmanned aircraft involves significant inherent risks, including but not limited to: physical injury from rotating propeller assemblies; fire and thermal runaway hazard from lithium-based energy storage; property damage from structural or control failure; and legal and regulatory liability in various jurisdictions.

7.2 Licensee Responsibilities.

Licensee is solely responsible for:

- (a) safe assembly, testing, and operation of any Manufactured Product;
- (b) compliance with all applicable laws, civil aviation regulations, and airspace rules in each jurisdiction in which any Manufactured Product is operated;
- (c) appropriate risk assessment, safety testing, and certification where required by law; and
- (d) ensuring that all operators of Manufactured Products are appropriately trained and informed of relevant safety risks.

7.3 No Certification.

Licensee must not represent any Manufactured Product as having been safety-certified, approved, or validated by Yirra Systems unless Yirra Systems has issued that certification in writing for that specific product.

8. WARRANTY DISCLAIMER

THE LICENSED MATERIALS ARE PROVIDED "AS IS" AND "AS AVAILABLE," WITHOUT WARRANTIES OF ANY KIND, EITHER EXPRESS OR IMPLIED, INCLUDING BUT NOT LIMITED TO IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, NON-INFRINGEMENT, ACCURACY, OR COMPLETENESS. YIRRA SYSTEMS DOES NOT WARRANT THAT THE LICENSED MATERIALS ARE FREE FROM DEFECTS OR ERRORS, OR THAT MANUFACTURED PRODUCTS BASED ON THEM WILL BE FIT FOR ANY PARTICULAR PURPOSE OR SAFE IN ANY PARTICULAR OPERATING CONTEXT.

9. LIMITATION OF LIABILITY

9.1 Liability Cap.

To the maximum extent permitted by applicable law, Yirra Systems' total aggregate liability to Licensee under or in connection with this License (whether in contract, tort including negligence, breach of statutory duty, or otherwise) is limited to the total fees paid by Licensee under the Commercial License Agreement in the twelve (12) months immediately preceding the event giving rise to the claim.

9.2 Consequential Loss Exclusion.

In no event will Yirra Systems be liable for any indirect, incidental, special, consequential, punitive, or exemplary loss or damage, including but not limited to: loss of profits; loss of revenue; loss of data; loss of goodwill; business interruption; personal injury; property damage; or third-party claims — even if advised of the possibility of such loss.

9.3 Statutory Rights.

Nothing in this License excludes or limits any liability that cannot lawfully be excluded, including liability under the Australian Consumer Law where applicable.

10. INDEMNIFICATION

Licensee agrees to indemnify, defend, and hold harmless Yirra Systems and its officers, directors, employees, contractors, and agents from and against any claims, damages, losses, costs, and expenses (including reasonable legal fees) arising out of or relating to:

- (a)** Licensee's use of the Licensed Materials;
- (b)** any Manufactured Product or Derivative Work;
- (c)** Licensee's breach of any term of this License; or
- (d)** any claim that a Manufactured Product caused personal injury, death, or property damage.

11. TERM AND TERMINATION

11.1 Term.

This License commences on the date of execution of the Commercial License Agreement and continues for the term specified in that Agreement, unless earlier terminated in accordance with this Section.

11.2 Termination for Breach.

Yirra Systems may terminate this License immediately on written notice if Licensee:

- (a) materially breaches any term of this License and fails to remedy the breach within thirty (30) days of written notice requiring remedy; or
- (b) becomes insolvent, enters administration or liquidation, is wound up, or makes a general arrangement with creditors.

11.3 Termination for Non-Payment.

Yirra Systems may terminate this License on fourteen (14) days' written notice if Licensee fails to pay any amount due under this License or the Commercial License Agreement and does not remedy that failure within the notice period.

11.4 Effect of Termination.

On termination or expiry of this License:

- (a) all rights granted under Section 2 cease immediately;
- (b) Licensee must cease using the Licensed Materials and, on request, destroy or return all copies in Licensee's possession or control;
- (c) Licensee may continue to Distribute Manufactured Products that were completed and held in inventory prior to the effective date of termination, provided all Per-Unit Royalties are paid; and
- (d) Sections 3, 4.7, 4.8, 6, 7, 8, 9, 10, 12, and 13 survive termination or expiry.

12. RELATIONSHIP TO CERN-OHL-W-2.0

12.1 Alternative Licensing.

The Licensed Materials are independently available under CERN-OHL-W-2.0. This Commercial License is an alternative for Licensees who cannot or choose not to comply with the reciprocal (share-alike) and source-availability obligations of that licence.

12.2 Election.

Licensee's execution of a Commercial License Agreement constitutes an election to use the Licensed Materials under this License rather than CERN-OHL-W-2.0 for the activities specified in that Agreement.

12.3 No Dual-Mode Use.

Licensee may not simultaneously rely on CERN-OHL-W-2.0 for some activities and this Commercial License for others without the express prior written agreement of Yirra Systems.

13. GENERAL PROVISIONS

13.1 Governing Law.

This License is governed by the laws of Victoria, Australia, without regard to conflict of laws principles. The parties irrevocably submit to the exclusive jurisdiction of the courts of Victoria, Australia.

13.2 Entire Agreement.

This License, together with the Commercial License Agreement, constitutes the entire agreement between the parties with respect to its subject matter and supersedes all prior representations, understandings, and agreements, whether written or oral.

13.3 Severability.

If any provision of this License is held invalid, illegal, or unenforceable, the remaining provisions continue in full force. The invalid provision is modified to the minimum extent necessary to make it valid and enforceable.

13.4 No Waiver.

Failure by Yirra Systems to exercise or enforce any right under this License does not constitute a waiver of that right and does not prevent Yirra Systems from exercising that right at any later time.

13.5 Amendments.

Yirra Systems may issue updated versions of this License. The version applicable to each Licensee is the version referenced in their Commercial License Agreement. No update binds a Licensee without their written acceptance.

13.6 Notices.

Notices under this License must be in writing and sent to Yirra Systems at business@yirrasystems.com, or such other address as Yirra Systems notifies in writing.

13.7 Independent Contractors.

The parties are independent contractors. Nothing in this License creates a partnership, joint venture, agency, franchise, or employment relationship between the parties.

13.8 Legal Advice.

Licensee acknowledges that it has had the opportunity to obtain independent legal advice before accepting this License.

SCHEDULE A

LICENSED MATERIALS — REPLICANT GEN 1

The following design files and associated documentation for the Replicant GEN 1 are covered by this License:

INCLUDED IN THIS LICENSE

- ✓ Airframe design files (structural frame and body)
- ✓ Battery rail and mount design files (structural interface only — not the battery pack itself)
- ✓ Associated technical documentation released under CERN-OHL-W-2.0

EXPRESSLY EXCLUDED FROM THIS LICENSE

- ✗ Battery pack design files
- ✗ Battery pack cell configuration
- ✗ Battery pack wiring and electrical design
- ✗ Any file explicitly marked "Proprietary"

The current set of Licensed Materials is as published at docs.yirrasystems.com. For battery pack licensing, OEM integration, or volume manufacturing arrangements, contact business@yirrasystems.com.

SCHEDULE B
STANDARD FEE SCHEDULE

Effective: 1 April 2026 | Currency: Australian dollars (AUD), exclusive of GST | Version: 1.0

B1 — Annual Tier Fee Structure

Tier	Annual Volume	Annual Base Fee (AUD)	Per-Unit Royalty (AUD)
Maker	1 – 25 units	AUD \$2,200 / year	AUD \$40 per unit
Commercial	26 – 500 units	AUD \$9,000 / year	AUD \$30 per unit
Fleet / OEM	501 – 2,000 units	AUD \$27,000 / year	AUD \$18 per unit
Enterprise / Def.	2,001+ or Gov/Def.	AUD \$85,000 / year	By negotiation (min. AUD \$15)

Annual Base Fee and Per-Unit Royalties are cumulative — both apply simultaneously. The Annual Base Fee is not a credit against Per-Unit Royalties. All fees exclude applicable taxes, duties, and withholding obligations, which are the Licensee's sole responsibility.

B2 — Indicative Annual Revenue Projections

For reference only. Actual amounts depend on units Distributed in each License year.

Tier	Units/yr	Base Fee	Royalties	Total/yr
Maker	10 units	\$2,200	\$400	\$2,600
Maker	25 units	\$2,200	\$1,000	\$3,200
Commercial	100 units	\$9,000	\$3,000	\$12,000
Commercial	250 units	\$9,000	\$7,500	\$16,500
Fleet / OEM	500 units	\$27,000	\$9,000	\$36,000
Fleet / OEM	2,000 units	\$27,000	\$36,000	\$63,000
Enterprise	3,000 units	\$85,000	Negot.	\$85,000+

B3 — Payment Terms Summary

Item	Term
Annual Base Fee due	Commencement date, and each anniversary thereof
Royalty reporting	Within 30 days of end of each Reporting Period (quarterly)
Royalty payment	Within 30 days of end of each Reporting Period
Late payment interest	1.5% per month compounding (approx. 19.56% p.a.) on overdue amounts
Audit rights	Once per License year; 30 days' written notice; Licensee pays audit costs if underpayment exceeds 5%
Tier upgrade obligation	Notify and upgrade within 30 days of exceeding Tier ceiling

Currency	Australian dollars (AUD), excl. GST; bank transfer to nominated account
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Enterprise / Defence Tier — Bespoke Arrangements Licensees operating at Enterprise or Defence/Government scale are engaged on a bespoke commercial basis. The Annual Base Fee of AUD \$85,000 and minimum Per-Unit Royalty of AUD \$15 are published floors. Actual terms — including volume discounts, escrow arrangements, audit procedures, export control compliance, and classified-program accommodations — are negotiated in the Commercial License Agreement. Contact: business@yirrasystems.com | Subject: Enterprise / Defence Licensing Enquiry

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